



**ARIZONA HOUSE OF REPRESENTATIVES
FLOOR AMENDMENT EXPLANATION**
57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2862](#): unlawful masking; violation

NGUYEN FLOOR AMENDMENT

1. Restricts the sentencing enhancement to apply only to crimes outlined in A.R.S. Title 13.
2. Allows the court to waive the sentencing enhancement if the court finds clear and convincing evidence that the face covering was worn as a religious covering.
3. Removes an exemption for face covering's worn by law enforcement while acting within the scope of their employment.

NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2862
(Reference to the JUDICIARY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 13, chapter 7, Arizona Revised Statutes, is
4 amended by adding section 13-722, to read:

5 13-722. Sentencing enhancement for identity concealment;
6 definition

7 A. A PERSON WHO IS CONVICTED OF ANY OFFENSE [PRESCRIBED IN THIS
8 TITLE THAT WAS COMMITTED] WHILE WEARING A MASK WITH THE INTENT TO CONCEAL
9 THE PERSON'S IDENTITY SHALL BE SENTENCED FOR THE NEXT HIGHER CLASS OF
10 OFFENSE THAN THAT FOR WHICH THE PERSON [CURRENTLY] IS [CONVICTED]
11 [CHARGED].

12 B. THIS SECTION DOES NOT APPLY TO~~[-]~~
13 ~~[-]~~ CLASS 1 AND CLASS 2 FELONIES.

14 ~~[2. ANY VIOLATION OF TITLE 28.]~~

15 C. THE ADDITIONAL SENTENCE IMPOSED PURSUANT TO THIS SECTION IS IN
16 ADDITION TO ANY ENHANCED SENTENCE THAT MAY BE APPLICABLE AND DOES NOT
17 PRECLUDE THE COURT FROM IMPOSING ANY OTHER SENTENCE THAT IS AUTHORIZED BY
18 LAW.

19 [D. THE COURT MAY WAIVE THE APPLICATION OF THIS SECTION AT
20 SENTENCING IF THE COURT FINDS BY CLEAR AND CONVINCING EVIDENCE THAT THE
21 MASK WAS WORN AS A RELIGIOUS COVERING, CONSISTENT WITH THE DEFENDANT'S
22 SINCERELY HELD RELIGIOUS BELIEFS.]

23 ~~[D.]~~ [E.] FOR THE PURPOSES OF THIS SECTION, "MASK"~~[-]~~

24 ~~[-]~~ MEANS A COVERING THAT OBSCURES OR IS WORN OVER A PERSON'S NOSE
25 OR MOUTH.

House Amendments to H.B. 2862

1 ~~[2. DOES NOT INCLUDE EQUIPMENT OR A FACE COVERING WORN BY A LAW~~
2 ~~ENFORCEMENT OFFICER ACTING WITHIN THE SCOPE OF THE LAW ENFORCEMENT~~
3 ~~OFFICER'S EMPLOYMENT.]"~~

4 Enroll and engross to conform
5 Amend title to conform

QUANG H. NGUYEN

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